

📖 Overview of IT Act, 2000

- Enforced by the Government of India
 - Came into force on **17 October 2000**
 - Based on the model law of UNCITRAL
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🎯 Objectives

1. **Legal recognition of electronic records and digital signatures**
 2. **Facilitate e-commerce and e-governance**
 3. **Prevent cybercrimes**
 4. **Ensure security of digital data and communication**
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🔑 Important Sections of IT Act, 2000

🔒 Cybercrime & Security

- **Section 43** – Unauthorized access, data theft, virus attacks
- **Section 65** – Tampering with computer source documents
- **Section 66** – Computer-related offences (hacking)

🔒 Content Regulation

- **Section 66A** – Punishment for offensive messages (*struck down in Shreya Singhal v. Union of India**)
- **Section 67** – Publishing obscene content online
- **Section 67A** – Sexually explicit content
- **Section 69A** – Power to block online content (used to remove videos/posts from social media)

🔒 Data Protection & Privacy

- **Section 72** – Breach of confidentiality and privacy
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🏛️ 2008 Amendment (Important Update)

The IT Act was amended in **2008** to address new cyber threats:

- Introduction of **Section 66C** – Identity theft
- **Section 66D** – Online cheating (fraud)
- **Section 66E** – Violation of privacy
- Strengthened provisions for cyber terrorism (**Section 66F**)

Practical Example

- If the government wants to remove a video from social media, it usually uses **Section 69A of IT Act 2000**, along with IT Rules (2021).
- Courts and authorities can direct platforms like Facebook or YouTube to block content.

Key Case Law

- Shreya Singhal v. Union of India
 - Section 66A was declared unconstitutional (violation of freedom of speech under Article 19(1)(a)).

Case Studies of IT Act, 2000 (India)

1. Shreya Singhal v. Union of India

Section Involved: 66A

Facts:

Two girls were arrested for posting comments on Facebook criticizing a bandh after a political leader's death.

Issue:

Misuse of Section 66A for restricting free speech.

Judgment:

- Supreme Court struck down Section 66A
- Declared it **unconstitutional**

Impact:

- ✓ Strengthened **freedom of speech**
- ✓ Limited arbitrary arrests in social media cases

2. Avnish Bajaj v. State (Bazee.com case)

Section Involved: 67

Facts:

An obscene MMS was sold on Bazee.com (CEO Avnish Bajaj was arrested).

Issue:

Liability of intermediaries (platforms hosting content)

Judgment:

- CEO not directly liable
- Platform responsibility clarified

Impact:

- ✓ Defined **intermediary liability**
 - ✓ Led to stronger IT rules for platforms
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3. 🏠 State of Tamil Nadu v. Suhas Katti

Section Involved: 67

Facts:

Accused posted obscene messages about a woman in a Yahoo group.

Judgment:

- First conviction under IT Act
- Accused punished within 7 months

Impact:

- ✓ Showed **effectiveness of cyber law enforcement**
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4. 🏢 NASSCOM v. Ajay Sood

Section Involved: 66

Facts:

Accused created fake emails/websites to steal confidential data (phishing).

Judgment:

- Recognized **phishing as cybercrime**
- Compensation awarded

Impact:

- ✓ Strengthened action against **online fraud**

5. 🏠 Shreya Singhal Blocking Rules Case

Section Involved: 69A

Facts:

Challenge to government powers to block online content.

Judgment:

- Section 69A upheld as valid
- Blocking allowed with proper procedure

Impact:

- ✓ Legal backing for **content blocking (videos/posts)**
- ✓ Used by Government of India to remove harmful content

6. 🏠 Anvar P.V. v. P.K. Basheer

Section Involved: IT Act + Evidence Act

Facts:

Issue regarding admissibility of electronic records.

Judgment:

- Electronic evidence must meet **Section 65B Evidence Act requirements**

Impact:

- ✓ Important for **digital evidence in courts**

📄 Quick Summary Table

Case	Section	Key Issue	Outcome
Shreya Singhal	66A	Free speech	Section struck down
Avnish Bajaj	67	Intermediary liability	Limited liability
Suhas Katti	67	Cyber harassment	First conviction
NASSCOM case	66	Phishing	Recognized cyber fraud
Blocking Rules	69A	Content removal	Govt power upheld
Anvar case	Evidence	E-evidence	Strict rules applied

Information Technology Act, 2000 (IT Act)

Introduction

The **Information Technology Act, 2000** is the primary cyber law in India that governs:

- Electronic records
- Digital signatures
- Cybercrimes
- E-commerce and online communication

It was enacted by the Government of India and came into force on **17 October 2000**, based on guidelines from UNCITRAL.

Objectives of IT Act, 2000

1. Provide **legal recognition** to electronic records and digital signatures
 2. Facilitate **e-governance** and electronic filing
 3. Promote **e-commerce and online transactions**
 4. Prevent and penalize **cybercrimes**
 5. Ensure **data security and privacy**
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☐ Key Features of IT Act

1. Legal Recognition of Electronic Records

- Electronic documents are treated as valid as paper documents
- Enables online contracts, agreements, and filings

2. Digital Signatures

- Provides legal validity to digital signatures
- Ensures authentication and integrity of electronic records

3. E-Governance

- Government services can be delivered electronically
- Filing of returns, applications, and documents online

4. Cybercrime Provisions

- Defines offences like hacking, identity theft, fraud, etc.

5. 🌐 Intermediary Liability

- Platforms like Facebook and YouTube are protected but must follow due diligence
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🔑 Important Sections of IT Act

🔒 Section 43 – Unauthorized Access

- Accessing or downloading data without permission
 - Introducing viruses or damaging systems
 - ↳ Civil liability (compensation)
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📄 Section 65 – Tampering with Source Code

- Destroying or altering computer source documents
 - ↳ Punishable with imprisonment/fine
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🖥️ Section 66 – Computer-Related Offences

- Hacking, data theft, fraud
 - ↳ Criminal offence
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👤 Section 66C – Identity Theft

- Misuse of passwords, digital signatures

📠 Section 66D – Cheating by Personation

- Online fraud (phishing, fake websites)

🔍 Section 66E – Violation of Privacy

- Capturing/transmitting private images without consent

🚨 Section 66F – Cyber Terrorism

- Attacks on national security systems
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🚫 Section 67 – Obscene Content

- Publishing obscene material online

🚫 Section 67A / 67B

- Sexually explicit content / child pornography
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🚫 Section 69A – Blocking of Content

- Government can block websites, apps, or videos
 - Used by Government of India
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🔒 Section 72 – Breach of Confidentiality

- Unauthorized disclosure of personal data
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✂️ IT Act Amendment, 2008

The Act was updated in 2008 to address modern cyber threats:

Key Additions:

- Identity theft (66C)
 - Online cheating (66D)
 - Privacy protection (66E)
 - Cyber terrorism (66F)
 - Stronger data protection rules
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⚖️ Important Case Law

- Shreya Singhal v. Union of India
 - Section 66A struck down (free speech violation)
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📱 Practical Applications

- Online banking and digital payments
- Filing income tax returns
- Social media regulation

- Cybercrime investigation
 - Blocking harmful online content
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⚠ Limitations of IT Act

1. Does not fully cover **data protection/privacy (earlier gap)**
2. Challenges with **cross-border cybercrime**
3. Rapid technology growth (AI, crypto) creates new issues
4. Enforcement difficulties

📁 Defamation Case Studies under IT Act, 2000

⚠ Note: **Defamation itself is primarily covered under Sections 499–500 of the IPC**, but when it happens **online**, provisions of the **IT Act, 2000** (like Sections 66, 67, 69A) may also apply.

1. 🏢 SMC Pneumatics (India) Pvt. Ltd. v. Jogesh Kwatra

Facts:

- An employee sent defamatory emails to colleagues and clients against the company.
- The emails harmed the company's reputation.

Legal Issues:

- Cyber defamation through emails
- Misuse of digital communication

Judgment:

- Court granted **injunction restraining the employee** from sending further defamatory emails

IT Act Relevance:

- Use of electronic communication (covered under IT Act framework)

Impact:

- ✓ First Indian case recognizing **cyber defamation**
 - ✓ Established that emails can be used as evidence
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2. 🏢 Tata Sons Ltd. v. Greenpeace International

Facts:

- Tata Sons alleged that Greenpeace created an online game criticizing its environmental practices.

Legal Issues:

- Online criticism vs defamation
- Freedom of speech vs reputation

Judgment:

- Court allowed the content (parody/satire)
- Did not consider it defamation

IT Act Relevance:

- Online publication and intermediary role

Impact:

✓ Balanced **free speech and corporate reputation**

3. 🏠 Shreya Singhal v. Union of India**Facts:**

- Arrest for social media posts considered offensive

Legal Issues:

- Misuse of Section 66A for online speech

Judgment:

- Section 66A struck down

IT Act Relevance:

- Prevented misuse of vague provisions in defamation-like cases

Impact:

✓ Protected **online speech from arbitrary arrests**

4. 🌐 Swami Ramdev v. Facebook Inc.

Facts:

- Yoga guru Baba Ramdev objected to defamatory content in a documentary shared online.

Legal Issues:

- Global removal of defamatory content
- Jurisdiction over social media platforms

Judgment:

- Court ordered platforms like Facebook and YouTube to **remove/block content globally**

IT Act Relevance:

- Section 69A (blocking power)
- Intermediary liability

Impact:

- ✓ Strengthened **content takedown powers**
 - ✓ Global implications for digital platforms
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5. Subramanian Swamy v. Union of India**Facts:**

- Challenge to validity of criminal defamation law

Judgment:

- Supreme Court upheld criminal defamation

IT Act Relevance:

- Applied in **online defamation cases combined with IPC**

Impact:

- ✓ Confirmed that **defamation is a punishable offence even online**
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** Key Legal Provisions Used in Online Defamation****Under IT Act:**

- **Section 66** – Misuse of computer systems
- **Section 67** – Objectionable content
- **Section 69A** – Blocking defamatory content

Along with IPC:

- **Section 499 IPC** – Definition of defamation
- **Section 500 IPC** – Punishment (imprisonment/fine)

IT Act 2000 – Amendment / Changes in 2023

1. IT (Intermediary Guidelines & Digital Media Ethics Code) Amendment Rules, 2023

 Notified on: **6 April 2023**

Major Provisions:

- **Regulation of Online Gaming**
 - Online gaming platforms must register with **self-regulatory bodies**
 - Mandatory compliance with rules for fairness, transparency, and user safety
- **Due Diligence for Intermediaries**
 - Social media, search engines, ISPs must:
 - Follow stricter compliance rules
 - Remove unlawful content quickly
 - Ensure user grievance redressal
- **Grievance Redressal System Strengthened**
 - Users can appeal decisions through **Grievance Appellate Committees**
- **Content Regulation (Fake News)**
 - Government proposed a **Fact Check Unit (FCU)** to identify:
 - “fake”, “false”, or “misleading” information about the Central Government

 Note:

- This FCU provision was **controversial** and later **stayed by the Supreme Court (2024)**.

2. Faster Content Removal Rules

- Platforms must:
 - Acknowledge complaints within **24 hours**
 - Resolve certain cases (like harmful content) within **72 hours**
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3. Inclusion of Online Gaming Intermediaries

- Online gaming platforms are now treated as **intermediaries**
 - Must ensure:
 - No betting/gambling harm
 - User protection and transparency
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4. Jan Vishwas (Amendment of Provisions) Act, 2023

 Passed: August 2023

Impact on IT Act:

- **Decriminalization of certain offences**
 - Minor offences converted from **criminal** → **civil penalties**
 - **Reduction in imprisonment provisions**
 - Focus on:
 - Ease of doing business
 - Compliance over punishment
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5. Removal of Section 66A (Earlier Context Clarified)

- Section 66A (offensive messages) was already struck down in **2015 (Shreya Singhal case)**
- 2023 updates **formally clean up such outdated provisions** in law references